

Sanjay Kumar Shukla v. Purvanchal Vidhut Vitarana Nigam

Allahabad High Court · Division Bench · 1 August 2022 · Writ-C No. 20704 of 2022 · **Writ disposed; petitioner relegated to Para 6.8 objection with stay of coercive action.**

HEADNOTE

A consumer sought mandamus to have his representation against an electricity demand decided under Clause 8.1 of the U.P. Electricity Supply Code, 2005. On the licensee's statement that an objection to the demand would be decided in accordance with law, the Division Bench, without examining merits, granted liberty to file a Para 6.8 objection within four weeks, directed disposal after hearing within the following four weeks, and stayed coercive action on the demand for eight weeks or until that disposal, whichever was earlier.

FACTUAL SUMMARY

Sanjay Kumar Shukla petitioned the Allahabad High Court for a mandamus directing the Purvanchal Vidyut Vitran Nigam officer to decide, within a fixed time and strictly under Clause 8.1 of the U.P. Electricity Supply Code, 2005, his representation against an impugned electricity demand. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to that demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ seeking time-bound decision of a Clause 8.1 representation against an electricity demand is disposed of by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, with a short stay of coercive action on the impugned demand. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ was disposed of by relegating the consumer to a Para 6.8 objection against the impugned demand rather than deciding the Clause 8.1 representation on merits. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the Para 6.8 objection is filed within four weeks, the assessing officer must decide it in accordance with law within the next four weeks after hearing, and coercive recovery is stayed for eight weeks or until that disposal, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4

NOT DECIDED — APPLICABILITY OF CLAUSE 8.1

The petitioner prayed for decision of his representation under Clause 8.1; the Court instead directed a Para 6.8 objection without deciding whether the theft procedure applied. ¶ 2-4

